

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

JUDGE JAMES KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant-Third-Party
Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

AFFIDAVIT OF MATTHEW M. SNOW

STATE OF OHIO :
 : SS
COUNTY OF KNOX :

I, Matthew M. Snow, being first duly sworn, depose and state as follows:

1. I am an individual, residing in Knox County, Ohio, am over the age of 18 years, am under no legal disability, and have personal knowledge of the facts testified to herein, except where stated to be on information and belief.

2. On November 22, 2021, I purchased from Yong-Hwa Chen and Chu-Hsiang Chen Lot 840, Phase VIII of The Landings, Knox County, Ohio. The parcel number for my property is 66-09675.216. I still own that real property today.

3. There is a house on that property which has a street address of 1 Longvue Court, Mount Vernon, Ohio 43050 (“my house”).

4. On information and belief, I am similarly situated to other owners of lots in Phases VII and VIII of The Landings, Mount Vernon, Ohio regarding the Knox Cattle Company Dam (the “Dam”).

5. A copy of the General Warranty Deed by which I took title to my house is attached hereto as Exhibit A.

6. My deed does not have any reference to any Declaration.

7. There was no Declaration attached to my deed.

8. My deed does not have any reference to any Building and Development Restrictions.

9. My deed does not have any reference to Deed Volume 1069, Page 118.

10. My deed does not have any reference to any requirement to join a homeowners association, or other entity.

11. My deed does not have any reference to any obligations regarding a dam or a lake.

12. The Dam is not located on the lot that I own.

13. I have never owned the Dam.

14. I did not construct the Dam.

15. I have never proposed to construct the Dam.

16. I have never had title to the real estate that the Dam is located on.

17. I have never had any right of use or control of the Dam.
18. Plat Cabinet C, Page 24, which is referenced in the legal description of my deed, does not show the Dam as being part of Phase VII of The Landings. A copy of that plat map is attached hereto as Exhibit B. In addition, my house is not in Phase VII of The Landings; it is in Phase VIII of The Landings. My deed does not have any reference to the plat map for where I live, which is in Phase VIII of The Landings.
19. The Dam is not located in Phase VIII of The Landings.
20. The parcel of land on which the Dam is located is not part of Phase VIII of The Landings.
21. There are no common properties located in Phase VIII of The Landings.
22. Mullins Bros., Ltd. ("Mullins") never sent any communication of any kind to me.
23. I have never signed an agreement with Mullins agreeing to hold Mullins harmless.
24. I never signed an agreement with Mullins acknowledging any deed restrictions.
25. I never signed an agreement with Mullins agreeing to join a homeowners association, or to pay \$200 annually.
26. No one provided a copy of a Declaration to me before I purchased my house.
27. The Declaration does not have any reference to any obligations regarding a dam.
28. The Declaration does not obligate me to own the dam or the lake.
29. The Declaration does not obligate me to be financially responsible in any way for the dam or the lake.
30. The Declaration did not have a copy of Articles of Incorporation attached to it.
31. The Declaration does not obligate me to be a member of The Landings Property Owners Association, Inc., or to pay any money to The Landings Property Owners Association, Inc.

32. Before the filing of this lawsuit by the State of Ohio, I had no personal knowledge of the Articles of Incorporation for The Landings Property Owners Association, Inc., because purported Articles of Incorporation were never provided to me by Mullins or The Landings Property Owners Association, Inc.

33. Neither Mullins nor The Landings Property Owners Association, Inc. ever informed me that on or about August 1, 2007, Mullins transferred the property where the Lake and the Dam were and are located at Parcel No. 66-09675.162 to The Landings Property Owners Association, Inc., via Quitclaim Deed for \$0 filed with the Knox County Recorder at Book No. 1091, Page No. 637.

34. Before I purchased my house, I was unaware that there was an earthen dam subject to regulation by the State of Ohio anywhere in the vicinity of my house.

35. Mullins never took any action to require me to become a member of a non-profit corporation known as the Landings Common Area Association, Inc.

36. Mullins never took any action to require me to become a member of a non-profit corporation known as The Landings Property Owners Association, Inc.

37. I have never been a member of any entity known as the Landings Common Area Association, Inc.

38. I have never been a member of any entity known as The Landings Property Owners Association, Inc.

39. I have never been a trustee, director, or officer of any entity known as the Landings Common Area Association, Inc.

40. I have never been a trustee, director, or officer of any entity known as The Landings Property Owners Association, Inc.

41. I have never paid any money to any entity known as the Landings Common Area Association, Inc.

42. I have never paid any money to any entity known as The Landings Property Owners Association, Inc.

43. I have never received a bill, invoice, statement, or assessment from any entity known as the Landings Common Area Association, Inc.

44. I have never received a bill, invoice, statement, or assessment from any entity known as The Landings Property Owners Association, Inc.

45. I have never received a bill, invoice, statement, or assessment from any entity known as the Landings Common Area Association, Inc.

46. As I understand that no entity has ever existed known as the Landings Common Area Association, Inc., it would have been impossible for me to have ever paid any money to the Landings Common Area Association, Inc., or to have any obligations whatsoever to the Landings Common Area Association, Inc.

47. I had and have no reason to believe that the reference in Section 4(B) of the Declaration to the Landings Common Area Association, Inc. was a mistake.

48. Before I purchased my house, I had never heard of The Landings Property Owners Association, Inc., and had no reason to believe that the reference in Section 4(B) of the Declaration to the Landings Common Area Association, Inc. was instead supposed to be a reference to The Landings Property Owners Association, Inc.

49. I do not have any right of access to the Dam.

50. For me to get to the Dam, I would have to trespass on land owned by others.

51. I have never had any ownership interest in The Landings Property Owners Association, Inc.

52. I understand that David Hanselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources, wrote a letter dated October 14, 2009, to “Dear Dam Owners” (the “2009 Dam Owners Letter”).

53. The State of Ohio did not send the 2009 Dam Owners Letter to me or any other owner of a lot in Phase VII or Phase VIII of The Landings.

54. In 2010, the State of Ohio Department of Natural Resources, Division of Soil and Water Resources (the “State”), issued a 2010 Dam Safety Inspection Report regarding the Dam.

55. The State did not send the 2010 Dam Safety Inspection Report to me or any other owner of a lot in Phase VII or Phase VIII of The Landings.

56. The State sent a 2015 Dam Safety Inspection Report to who it considered to be the owners of the Dam.

57. The State did not send the 2015 Dam Safety Inspection Report to me or any other owner of a lot in Phase VII or Phase VIII of The Landings.

58. On April 26, 2018, the State sent a letter to who the State considered to be the owners of the Dam requesting a schedule for completing the required remedial measures listed in the 2010 and 2015 Dam Safety Inspection Reports.

59. The State did not send the April 26, 2018 letter to me or any other owner of a lot in Phase VII or Phase II of The Landings.

60. On November 25, 2019, the State issued a 2019 Dam Safety Inspection Report regarding the Dam.

61. The State did not send the 2019 Dam Safety Inspection Report to me or any other owner of a lot in Phase VII or Phase II of The Landings.

62. The State filed a Complaint for Declaratory and Injunctive Relief in the Knox County Court of Common Pleas on June 10, 2020, seeking declaratory relief about who owns the Dam, and did not name me or any other lot owner in Phase VII or Phase VIII of The Landings as a defendant.

63. The State filed a First Amended Complaint for Declaratory and Injunctive Relief in the Knox County Court of Common Pleas on July 2, 2020, seeking declaratory relief about who owns the Dam, and did not name me or any other lot owner in Phase VII or Phase VIII of The Landings as a defendant.

64. The State filed a Second Amended Complaint for Declaratory and Injunctive Relief in the Knox County Court of Common Pleas on November 15, 2021, seeking declaratory relief about who owns the Dam, and did not name me or any other lot owner in Phase VII or Phase VIII of The Landings as a defendant.

65. The State filed a Third Amended Complaint for Declaratory and Injunctive Relief in the Knox County Court of Common Pleas on March 31, 2023, seeking declaratory relief about who owns the Dam, in which it named me and other lot owners in Phase VII and Phase VIII of The Landings as defendants, along with Mullins and The Landings Property Owners Association, Inc.

66. Before the filing of the Third Amended Complaint in this case, the State never made any request or demand related to the Dam to me or any other lot owner in Phase VII or Phase VIII of The Landings as a defendant.

67. I have been severely prejudiced, as, on information and belief, have all other lot owners in Phase VII and Phase VIII of The Landings, by the State's substantial delay in asserting

a claim that lot owners in Phase VII and Phase VIII of The Landings are owners of the Dam, and personally responsible for repair and maintenance of the Dam.

68. If the State had established in 2009 that individual lot owners in Phases VII and VIII of The Landings were owners of the Dam and personally responsible for repair and maintenance of the Dam, a common fund could have been gathered to pay for repair and maintenance of the Dam.

69. If the State had established in 2009 that individual lot owners in Phases VII and VIII of The Landings were owners of the Dam and personally responsible for repair and maintenance of the Dam, I would not have purchased my house in The Landings, for multiple reasons, including a reluctance to assume responsibility for a Dam that was not located on my property or in my development, and for which I would receive no benefit.

70. If the State had established in 2009 that individual lot owners in Phases VII and VIII of The Landings were owners of the Dam and personally responsible for repair and maintenance of the Dam, I would not have been responsible for a share of \$2,560,000 in costs for repair and remediation of the Dam, because the necessary repair and maintenance of the Dam would have likely been completed before I purchased my house.

71. If the State had established in 2009 that individual lot owners in Phases VII and VIII of The Landings were owners of the Dam and personally responsible for repair and maintenance of the Dam, I would not have been responsible for a share of \$2,560,000 in costs for repair and remediation of the Dam, because then owners of lots in Phase VII and Phase VIII of The Landings would likely taken and completed steps to change the Dam and Lake to take the Dam out of the jurisdiction of the State of Ohio before I purchased my house.

72. Because of the State’s delay of 14 years in asserting a claim that the individual lot owners in Phases VII and VIII of The Landings are personally responsible for repair and maintenance of the Dam, lot owners have died, moved away, and otherwise become unavailable to contribute to a common fund.

73. Because of the State’s delay of 14 years in asserting a claim that the individual lot owners in Phases VII and VIII of The Landings are personally responsible for repair and maintenance of the Dam, the cost of repair and maintenance of the Dam has increased exponentially.

74. In 2009, the State only required that certain studies and plans be completed within five years. The 2019 Dam Safety Inspection Report issued April 27, 2020, and referenced in the Complaint for Declaratory and Injunctive Relief, required extensive “remedial measures.” On July 1, 2022, a consulting firm retained by the City of Mount Vernon issued a written report, in which it estimated the cost of the remedial measures required by the State to be \$2,560,000.

FURTHER AFFIANT SAYETH NAUGHT.

MATTHEW M. SNOW

Sworn to before me and subscribed in my presence this ____ day of January, 2024.

NOTARY PUBLIC

TRANSFERRED
SEE SEC. 319.54 1369.50
SEC. 319.202 R.C. COMPLIED WITH

DEC 16 2021

JONETTE CURRY
KNOX COUNTY, OHIO
NO 3135 BY meb



Doc ID: 004793950004 Type: OFF
Kind: DEED
Recorded: 12/16/2021 at 09:25:53 AM
Fee Amt: \$50.00 Page 1 of 4
Knox Ohio
TANNER S. SALYERS County Recorder
File# 2021-00012625

BK **1897** PG **548-551**

General Warranty Deed

Yong-Hwa Chen^{//} and Chu-Hsiang Chen^{//}, married and to each other, and Chun-Hung Chen,
unmarried convey(s), with general warranty covenants to Matthew M. Snow[✓] and Megan Snow[✓], for
their joint lives, remainder to the survivor of them, whose tax mailing address is

1 Longvue Ct, the following **REAL PROPERTY**:
mt Vernon, OH 43050

SEE LEGAL DESCRIPTION ATTACHED HERETO AS EXHIBIT A

Parcel No. 66-09675.216

Property Address: 1 Longvue Court, Mount Vernon, OH 43050
Prior Instrument Reference: Official Records Book 1111, Pages 496-497, Deed
Records of Knox County, Ohio.

EXCEPTIONS TO WARRANTIES: Except as hereinbefore provided, except all
easements, leases, conditions and restrictions of record; and real estate taxes hereafter due and
payable.

EW

IN WITNESS WHEREOF, grantor(s) has/have caused their name(s) to be subscribed
hereto this 22 day of November, 2021.

Yong-Hwa Chen
Yong-Hwa Chen

Chu-Hsiang Chen
Chu-Hsiang Chen

STATE of OHIO

COUNTY of Franklin, ss:

This is an acknowledgement clause. No oath or affirmation was administered to the signer(s).

BE IT REMEMBERED, that on this 22 of November, 2021 before me, the
subscriber, a notary public in and for said state, personally came Yong-Hwa Chen and Chu-Hsiang
Chen, grantor(s) in the foregoing deed, and acknowledged the signing thereof to be his/her/their
voluntary act and deed.

IN TESTIMONY THEREOF, I have hereunto subscribed my name and affixed my
official seal on the day and year last aforesaid.



KENNETH F. HIGDON
Notary Public
State of Ohio
My Commission Expires
March 26, 2023

Kenneth F. Higdon
Notary Public Kenneth F. Higdon

IN WITNESS WHEREOF, grantor(s) has/have caused their name(s) to be subscribed
hereto this 22 day of November, 2021.

Chun-Hung Chen
Chun-Hung Chen

STATE of OHIO

COUNTY of Franklin, ss:

This is an acknowledgement clause. No oath or affirmation was administered to the signer(s).

BE IT REMEMBERED, that on this 22 of November, 2021 before me, the
subscriber, a notary public in and for said state, personally came Chun-Hung Chen, grantor(s) in
the foregoing deed, and acknowledged the signing thereof to be his/her/their voluntary act and
deed.

IN TESTIMONY THEREOF, I have hereunto subscribed my name and affixed my
official seal on the day and year last aforesaid.



KENNETH F. HIGDON
Notary Public
State of Ohio
My Commission Expires
March 26, 2023

[Signature]
Notary Public Kenneth F. Higdon

This instrument was prepared by Colin R. Beach, Attorney at Law, Walker Novack Legal Group, LLC, 5013 Pine
Creek Drive, Westerville, Ohio 43081

2110-017-Longvu

Exhibit "A"
Property Description

Situated in the City of Mount Vernon, County of Knox and State of Ohio:

Being Lot 840 Phase VIII of The Landing.. More fully set forth in Plat Cabinet C, Page 24, as recorded in the Knox County Recorder's Office.

Permanent Parcel Number: 66-09675.216

DESCRIPTION
APPROVED
CAMERON KEATON
KNOX COUNTY ENGINEER



Y, H, C,

CHC

CHC

